

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JALEN L. ROSE, an infant under the age of
18 years by his mother and legal guardian
WASHICA NICHOLS, WANDA MCCLELLAN and
DWIGHT NICHOLS,

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT and POLICE OFFICER
NELSON PABON,

Defendants.
-----X

INDEX NO:

DATE PURCHASED:

SUMMONS

Plaintiff designates
NEW YORK COUNTY
as the place of trial
The basis of venue is
SITUS OF THE INCIDENT
555 West 151st Street
New York, New York

TO THE ABOVE-MENTIONED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 9, 2013



CRAIG L. DAVIDOWITZ, P.C.,
Attorney for Plaintiff
Office and P.O. Address
450 Seventh Avenue, Suite 1508
New York, New York 10123
Tel: (212) 378-2051
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Defendants' Addresses:

THE CITY OF NEW YORK

100 Church Street
New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT

100 Church Street
New York, New York 10007

POLICE OFFICER NELSON PABON

30th Police Precinct
451 West 151st street
New York, New York 10031

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JALEN L. ROSE, an infant under the age of
18 years by his mother and legal guardian
WASHICA NICHOLS, WANDA MCCLELLAN and
DWIGHT NICHOLS,

INDEX NO:
DATE PURCHASED:

**VERIFIED
COMPLAINT**

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT and POLICE OFFICER
NELSON PABON,

Defendants.

-----X

Plaintiffs, complaining by their attorney, **CRAIG L. DAVIDOWITZ,**
P.C., respectfully allege:

AS TO JALEN L. ROSE
FOR A FIRST CAUSE OF ACTION

1. That in December, 2012 when the Criminal/Family Court proceeding was terminated in favor of claimant. At 555 West 151st Street, Apartment 45, City and State of New York, where claimant was arrested subsequently put in to a Police van and taken into custody, brought to the 30th Police Precinct located at 451 West 151st Street, New York, New York, subsequently taken to Central Booking located at 100 Centre Street, New York, New York, and subsequently taken to Family Court located at 60 Lafayette Street, New York, New York.
2. That this action was commenced within one year and ninety days after said cause of action occurred, that within ninety days after said cause of action occurred, the plaintiff duly presented and filed with THE CITY OF NEW YORK, a duly verified statement of plaintiff's claims against the defendant showing in detail the injuries, and asking payment and adjustment of plaintiff's said claims, and that notice of the intention to commence such an action as the present stating the time when and place where the injuries were incurred or sustained was similarly presented to and filed with THE CITY OF NEW YORK and although more than thirty (30) days have elapsed since such presentation and filing, THE CITY OF NEW YORK, have neglected and refused to pay said claim. That a hearing pursuant to

General Municipal Law Section 50-h was held on February 27, 2013.

3. That this action was commenced within one year and ninety days after said cause of action occurred, that within ninety days after said cause of action occurred, the plaintiff duly presented and filed with THE NEW YORK CITY POLICE DEPARTMENT, a duly verified statement of plaintiff's claims against the defendant showing in detail the injuries, and asking payment and adjustment of plaintiff's said claims, and that notice of the intention to commence such an action as the present stating the time when and place where the injuries were incurred or sustained was similarly presented to and filed with THE NEW YORK CITY POLICE DEPARTMENT and although more than thirty (30) days have elapsed since such presentation and filing, THE NEW YORK CITY POLICE DEPARTMENT, have neglected and refused to pay said claim. That a hearing pursuant to General Municipal Law Section 50-h was held on February 27, 2013.
4. That defendant, THE CITY OF NEW YORK is and at all times hereinafter mentioned was a municipal corporation organized and existing under the laws of the State of New York.
5. That defendant, THE NEW YORK CITY POLICE DEPARTMENT is and at all times hereinafter mentioned was a municipal corporation organized and existing under the laws of the State of New York.
6. That at all times hereinafter mentioned defendant, THE NEW YORK CITY POLICE DEPARTMENT, its servants, agents and/or employees employed Police Officers and other personnel, to work as representatives of defendant THE CITY OF NEW YORK.
7. That on or about October 10, 2012, plaintiff, JALEN L. ROSE, an infant under the age of 18 years by his mother and legal guardian WASHICA NICHOLS, was lawfully present at the aforesaid location.
8. That on or about October 10, 2012, plaintiff, JALEN L. ROSE, an infant under the age of 18 years by his mother and legal guardian WASHICA NICHOLS, was taken into custody imprisoned and confined by defendant, THE CITY OF NEW YORK.
9. That on or about October 10, 2012, plaintiff, JALEN L. ROSE, an infant under the age of 18 years by his mother and legal guardian WASHICA NICHOLS, was taken into custody imprisoned and confined by defendant, THE NEW YORK CITY POLICE DEPARTMENT.
10. That on or about October 10, 2012, plaintiff, JALEN L. ROSE, an infant under the age of 18 years by his mother and legal

guardian WASHICA NICHOLS, was taken into custody, imprisoned and confined by defendant, THE CITY OF NEW YORK and it was the intention of defendant THE CITY OF NEW YORK to so confine the plaintiff and that plaintiff was conscious of such confinement and did not consent to such confinement and neither was such confinement privileged.

11. That on or about October 10, 2012, plaintiff, JALEN L. ROSE, an infant under the age of 18 years by his mother and legal guardian WASHICA NICHOLS, was taken into custody, imprisoned and confined by defendant, THE NEW YORK CITY POLICE DEPARTMENT, and it was the intention of defendant THE NEW YORK CITY POLICE DEPARTMENT to so confine the plaintiff and that plaintiff was conscious of such confinement and did not consent to such confinement and neither was such confinement privileged.
12. That on or about October 10, 2012, plaintiff, JALEN L. ROSE, an infant under the age of 18 years by his mother and legal guardian WASHICA NICHOLS, was taken into custody at the aforesaid location, handcuffed and thereafter forced to enter a cell in the 30th Police Precinct, by said officers, the plaintiff was detained and incarcerated with criminals and persons charged with crimes, to his shame and humiliation.
13. Plaintiff JALEN L. ROSE, an infant under the age of 18 years by his mother and legal guardian WASHICA NICHOLS, was held in the custody of defendant THE CITY OF NEW YORK from October 10, 2012 to October 11, 2012.
14. Plaintiff JALEN L. ROSE, an infant under the age of 18 years by his mother and legal guardian WASHICA NICHOLS, was held in the custody of defendant THE NEW YORK CITY POLICE DEPARTMENT from October 10, 2012 to October 11, 2012.
15. While plaintiff was held, defendant, THE CITY OF NEW YORK, failed to properly investigate the nature of the detainment and circumstances resulting from the improper search and seizure and false arrest, and as a result held plaintiff believing he violated applicable rules, laws and regulations.
16. While plaintiff was held, defendant, THE NEW YORK CITY POLICE DEPARTMENT, failed to properly investigate the nature of the detainment and circumstances resulting from the improper search and seizure and false arrest, and as a result held plaintiff believing he violated applicable rules, laws and regulations.
17. Plaintiff JALEN L. ROSE, an infant under the age of 18 years by his mother and legal guardian WASHICA NICHOLS, remained

imprisoned against his will, at all times conscious of such imprisonment until October 11, 2012, when he was released from prison.

18. Said imprisonment, detention and confinement was made and caused to be made by the defendants without any justification, probable cause or excuse therefore and without any warrant or other process of any court directing or authorizing the imprisonment, detention or confinement of the plaintiff.
19. That on or about October 10, 2012, up to and including October 11, 2012 the plaintiff was a victim of tortious conduct perpetrated by agents, servants, officers and or employees of the defendant, THE CITY OF NEW YORK, which tortious conduct consisted of negligence, false imprisonment, malicious prosecution, libel, slander, wrongful arrest, negligent and intentional infliction of emotional distress, negligent hiring and retention and violation of the plaintiff's civil rights.
20. As a result of the aforesaid tortious conduct, plaintiff sustained serious personal injury, inconvenience, mental anguish, humiliation, damages and losses, both physical and psychological.
21. That on or about October 10, 2012, up to and including October 11, 2012 the plaintiff was a victim of tortious conduct perpetrated by agents, servants, officers and or employees of the defendants, THE NEW YORK CITY POLICE DEPARTMENT, which tortious conduct consisted of negligence, false imprisonment, malicious prosecution, libel, slander, wrongful arrest, negligent and intentional infliction of emotional distress, negligent hiring and retention and violation of the plaintiff's civil rights.
22. As a result of the aforesaid tortious conduct, plaintiff sustained serious personal injury, inconvenience, mental anguish, humiliation, damages and losses, both physical and psychological.
23. At the aforesaid time and place, and at all times pertinent to this action, the individuals who committed the aforesaid tortious conduct that injured the plaintiff were agents, servants, officers and or employees of the defendant, THE CITY OF NEW YORK and acting within the scope of their employment duties for THE CITY OF NEW YORK.
24. At the aforesaid time and place, and at all times pertinent to this action, the individuals who committed the aforesaid

tortious conduct that injured the plaintiff were agents, servants, officers and or employees of the defendant, THE NEW YORK CITY POLICE DEPARTMENT and acting within the scope of their employment duties for THE NEW YORK CITY POLICE DEPARTMENT.

25. At the aforesaid time and place, and at all times pertinent to this action, the individuals who committed the aforesaid tortious conduct that injured the plaintiff were acting within the scope of their apparent authority as Police Officers.

26. At the aforesaid time and place and at all times pertinent to this action, the aforesaid tortious conduct that injured the plaintiff is imputable to THE CITY OF NEW YORK under the doctrine of respondent superior.

27. At the aforesaid time and place and at all times pertinent to this action, the aforesaid tortious conduct that injured the plaintiff is imputable to THE NEW YORK CITY POLICE DEPARTMENT under the doctrine of respondent superior.

28. The tortious conduct that was committed by the defendant, THE CITY OF NEW YORK, was egregious and oppressive and characterized by malicious or wantonness justifying the imposition of punitive damages therefore.

29. The tortious conduct that was committed by the defendant, THE NEW YORK CITY POLICE DEPARTMENT, was egregious and oppressive and characterized by malicious or wantonness justifying the imposition of punitive damages therefore.

30. The tortious conduct that was committed by the defendant, THE CITY OF NEW YORK, was egregious and oppressive and characterized by malicious or wantonness justifying the imposition of punitive damages therefore.

31. The tortious conduct that was committed by the defendant, THE NEW YORK CITY POLICE DEPARTMENT, was egregious and oppressive and characterized by malicious or wantonness justifying the imposition of punitive damages therefore.

32. The imposition of punitive damages on the defendant, THE CITY OF NEW YORK, for the egregious tortious conduct of the defendants' employees is justified on the grounds that the defendants, THE CITY OF NEW YORK authorized and ratified the conduct and that the defendants were reckless or wanton in retaining and hiring the employees who committed the tort after knowledge of the employees' proclivities to engage in such conduct.

33. The imposition of punitive damages on the defendant, THE NEW YORK CITY POLICE DEPARTMENT, for the egregious tortious conduct of the defendants' employees is justified on the grounds that the defendants, THE NEW YORK CITY POLICE DEPARTMENT authorized and ratified the conduct and that the defendants were reckless or wanton in retaining and hiring the employees who committed the tort after knowledge of the employees' proclivities to engage in such conduct.

AS TO JALEN L. ROSE
FOR A SECOND CAUSE OF ACTION

34. The plaintiff repeats, reiterates and realleges each and every paragraph numbered 1 through 33 inclusive as if more fully set forth at length herein.

35. That the defendant THE CITY OF NEW YORK, in the absence of probable cause for criminal proceedings against the plaintiff JALEN L. ROSE and with actual malice, commenced and continued with the criminal proceedings against the plaintiff, which proceedings were terminated in favor of the plaintiff.

36. That the defendant THE NEW YORK CITY POLICE DEPARTMENT, in the absence of probable cause for criminal proceedings against the plaintiff JALEN L. ROSE and with actual malice, commenced and continued with the criminal proceedings against the plaintiff, which proceedings were terminated in favor of the plaintiff.

37. That at the aforesaid time and place, and at the times pertinent hereto, the plaintiff was victim of tortious conduct perpetrated by agents, servants, officers and or employees of the defendant, THE CITY OF NEW YORK, which tortious conduct consisted of false and wrongful imprisonment, wrongful detainment in custody, malicious prosecution, negligent hiring and retention and violation of the plaintiff's civil rights.

38. That at the aforesaid time and place, and at the times pertinent hereto, the plaintiff was victim of tortious conduct perpetrated by agents, servants, officers and or employees of the defendant, THE NEW YORK CITY POLICE DEPARTMENT, which tortious conduct consisted of false and wrongful imprisonment, wrongful detainment in custody, malicious prosecution, negligent hiring and retention and violation of the plaintiff's civil rights.

39. That at the aforesaid time and place, and at the times pertinent hereto, the plaintiff was victim of negligence on the part of the agents, servants, officers and or employees of the defendant, THE CITY OF NEW YORK which included lodging a

baseless complaint against the plaintiff, false imprisonment, wrongful imprisonment, wrongful detainment in custody, negligent and intentional infliction of emotional distress, all without probable cause or reasonable basis, in failing to prevent or aid in preventing the false and unfounded nature of criminal allegations against the plaintiff, despite being aware of same and in otherwise carelessly and improperly exercising their authority and power.

40. That at the aforesaid time and place, and at the times pertinent hereto, the plaintiff was victim of negligence on the part of the agents, servants, officers and or employees of the defendant, THE NEW YORK CITY POLICE DEPARTMENT which included lodging a baseless complaint against the plaintiff, false imprisonment, wrongful imprisonment, wrongful detainment in custody, negligent and intentional infliction of emotional distress, all without probable cause or reasonable basis, in failing to prevent or aid in preventing the false and unfounded nature of criminal allegations against the plaintiff, despite being aware of same and in otherwise carelessly and improperly exercising their authority and power.
41. As a direct and proximate cause of the negligence described above the plaintiff sustained serious personal injury, inconvenience, mental anguish, humiliation, damages and losses, both physical and psychological.
42. That at all times pertinent hereto, the individuals whose negligence caused the plaintiff's injuries as described herein were employed by the defendant, THE CITY OF NEW YORK in the capacity of agents, servants, officers and or employees.
43. That at all times pertinent hereto, the individuals whose negligence caused the plaintiff's injuries as described herein were employed by the defendant, THE NEW YORK CITY POLICE DEPARTMENT in the capacity of agents, servants, officers and or employees.
44. The defendant's employees were acting in the scope of their employment, under the defendants' control and in furtherance of the defendants' interest at the time of their negligence which caused the plaintiffs injuries.

AS TO JALEN L. ROSE
FOR A THIRD CAUSE OF ACTION

45. The plaintiff repeats, reiterates and realleges each and every paragraph numbered 1 through 44 inclusive as if more fully set forth at length herein.
46. That on or before October 10, 2012, the defendant, THE CITY OF NEW YORK hired the agent(s), servant(s), officer(s), and or employees who engaged in the aforesaid tortious conduct.
47. That on or before October 10, 2012, the defendant, THE NEW YORK CITY POLICE DEPARTMENT hired the agent(s), servant(s), officer(s), and or employees who engaged in the aforesaid tortious conduct.
48. The aforesaid agent(s), servant(s), officer(s) and or employees continued to be employed by the defendant, THE CITY OF NEW YORK, through, including, and beyond October 10, 2012.
49. The aforesaid agent(s), servant(s), officer(s) and or employees continued to be employed by the defendant, THE NEW YORK CITY POLICE DEPARTMENT, through, including, and beyond October 10, 2012.
50. That on October 10, 2012, up to and including October 13, 2012, the aforesaid agent(s), servant(s), officer(s) and or employees were incompetent and unfit to perform the work required in their capacity of agent(s), servant(s), officer(s) and or employees for the defendant, THE CITY OF NEW YORK.
51. That on October 10, 2012, up to and including October 13, 2012, the aforesaid agent(s), servant(s), officer(s) and or employees were incompetent and unfit to perform the work required in their capacity of agent(s), servant(s), officer(s) and or employees for the defendant, THE NEW YORK CITY POLICE DEPARTMENT.
52. The defendant, THE CITY OF NEW YORK, knew or should have known that a person in the plaintiff's position would be subjected to an unreasonable risk of harm from the aforesaid individuals committing said tortious conduct.
53. The defendant, THE NEW YORK CITY POLICE DEPARTMENT, knew or should have known that a person in the plaintiff's position would be subjected to an unreasonable risk of harm from the aforesaid individuals committing said tortious conduct.
54. The defendant, THE CITY OF NEW YORK, when they hired the agent(s), servant(s), officer(s), and or employees who committed said tortious conduct breached the duty owed to the plaintiff to use reasonable care in hiring them in that they knew or should

have known that they were incompetent or unfit for employment. Furthermore, defendant, THE CITY OF NEW YORK, failed to conduct reasonable investigation into the background and character of said agent(s), servant(s), officer(s) and employees.

55.The defendant, THE NEW YORK CITY POLICE DEPARTMENT, when they hired the agent(s), servant(s), officer(s), and or employees who committed said tortious conduct breached the duty owed to the plaintiff to use reasonable care in hiring them in that they knew or should have known that they were incompetent or unfit for employment. Furthermore, defendant, THE NEW YORK CITY POLICE DEPARTMENT, failed to conduct reasonable investigation into the background and character of said agent(s), servant(s), officer(s) and employees.

56.That on or about October 10, 2012, agent(s), servant(s), officer(s) and or employees, of the defendant, THE CITY OF NEW YORK, falsely arrested the plaintiff, wrongfully arrested the plaintiff, wrongfully detained in custody, maliciously prosecuted, wrongfully imprisoned and falsely imprisoned the plaintiff.

57.That on or about October 10, 2012, agent(s), servant(s), officer(s) and or employees, of the defendant, THE NEW YORK CITY POLICE DEPARTMENT, falsely arrested the plaintiff, wrongfully arrested the plaintiff, wrongfully detained in custody, maliciously prosecuted, wrongfully imprisoned and falsely imprisoned the plaintiff.

58.As a direct and proximate result of the defendants' breach of duty in hiring and retaining said agent(s), servant(s), officer(s) and or employees, the plaintiff sustained serious personal injuries both physical and psychological.

AS TO JALEN L. ROSE
FOR A FOURTH CAUSE OF ACTION

59.The plaintiff repeats, reiterates and realleges each and every paragraph numbered 1 through 59 inclusive as if more fully set forth at length herein.

60.The acts of the defendant, THE CITY OF NEW YORK, their agent(s), servant(s), officer(s) and or employees described herein were done willfully, maliciously, outrageously, deliberately and purposely with the intention to inflict emotional distress upon the plaintiffs and to destroy plaintiffs' personal property and to destroy plaintiff's personal possessions and to destroy

plaintiff's apartment, and they were all done in reckless disregard of the probability of causing the plaintiff emotional distress and these acts did in fact result in fear and extreme emotional distress.

61.The acts of the defendant, THE NEW YORK CITY POLICE DEPARTMENT, their agent(s), servant(s), officer(s) and or employees described herein were done willfully, maliciously, outrageously, deliberately and purposely with the intention to inflict emotional distress upon the plaintiffs and to destroy plaintiffs' personal property and to destroy plaintiff's personal possessions and to destroy plaintiff's apartment, and they were all done in reckless disregard of the probability of causing the plaintiff emotional distress and these acts did in fact result in fear and extreme emotional distress.

62.As a direct and proximate result of the acts mentioned above, plaintiff was caused to incur severe mental and emotional suffering, fright, anguish, shock, nervousness and anxiety. Plaintiff continues to be fearful, anxious and nervous for which he was required to seek and receive medical treatment.

AS TO JALEN L. ROSE
FOR A FIFTH CAUSE OF ACTION

63.The plaintiff repeats, reiterates and realleges each and every paragraph numbered 1 through 62 inclusive as if more fully set forth at length herein.

64.Plaintiff was imprisoned and detained without probable cause by the defendant, THE CITY OF NEW YORK, their agent(s), servant(s), officer(s) and or employees, who under the facts available did not have an objective, good faith belief that the plaintiff was guilty of the charges against him.

65.Plaintiff was imprisoned and detained without probable cause by the defendant, THE NEW YORK CITY POLICE DEPARTMENT, their agent(s), servant(s), officer(s) and or employees, who under the facts available did not have an objective, good faith belief that the plaintiff was guilty of the charges against him.

66.As a direct and proximate cause of the false imprisonment, wrongful imprisonment, unjustified false arrest, negligence and wrongful arrest, plaintiff has suffered damages both physical and psychological.

AS TO JALEN L. ROSE
FOR A SIXTH CAUSE OF ACTION

67. The plaintiff repeats, reiterates and realleges each and every paragraph numbered 1 through 66 inclusive as if more fully set forth at length herein.
68. The defendant, THE CITY OF NEW YORK, their agent(s), servant(s), officer(s) and or employees, falsely imprisoned the plaintiff; all with the intent to inflict unnecessary harm against the plaintiff.
69. The defendant, THE NEW YORK CITY POLICE DEPARTMENT, their agent(s), servant(s), officer(s) and or employees, falsely imprisoned the plaintiff; all with the intent to inflict unnecessary harm against the plaintiff.
70. Such acts caused both physical and psychological injuries to the plaintiff.
71. Plaintiff alleges that such acts were in violation of his civil rights under the Fourth Amendment of the United States Constitution to be free from unreasonable imprisonment and his right under the Fourteenth Amendment of the United States Constitution to due process of law.
72. Plaintiff's imprisonment was made under the authority of the agent(s), servant(s), officer(s) and or employees, of THE CITY OF NEW YORK.
73. Plaintiff's imprisonment was made under the authority of the agent(s), servant(s), officer(s) and or employees, of THE NEW YORK CITY POLICE DEPARTMENT.
74. Plaintiff further alleges that the violation of his constitutional rights were caused by the implementation of a custom, policy, or official act of the defendant, THE CITY OF NEW YORK, thereby making THE CITY OF NEW YORK, agent(s), servant(s), officer(s) and or employees liable pursuant to 42 U.S.C. Section 1983.
75. Plaintiff further alleges that the violation of his constitutional rights were caused by the implementation of a custom, policy, or official act of the defendant, THE NEW YORK CITY POLICE DEPARTMENT, thereby making THE NEW YORK CITY POLICE DEPARTMENT, agent(s), servant(s), officer(s) and or employees liable pursuant to 42 U.S.C. Section 1983.

AS TO JALEN L. ROSE
FOR A SEVENTH CAUSE OF ACTION

76.The plaintiff repeats, reiterates and realleges each and every paragraph numbered 1 through 75 inclusive as if more fully set forth at length herein.

77.Pursuant to 42 U.S.C. Section 1983 and 1988 the plaintiff seeks an award of costs and attorney fees incurred in bringing this action.

AS TO JALEN L. ROSE
FOR A EIGHTH CAUSE OF ACTION

78.The plaintiff repeats, reiterates and realleges each and every paragraph numbered 1 through 77 inclusive as if more fully set forth at length herein.

79.Pursuant to 42 U.S.C. Section 1983, the plaintiff demands an award of punitive damages against the individuals involved in the subject occurrence.

80.The plaintiff has been damaged and injured in his good name and reputation; caused to suffer great humiliation, pain and anguish of mind, and have been injured in his health.

AS TO JALEN L. ROSE
FOR A NINTH CAUSE OF ACTION

81.The plaintiff repeats, reiterates and realleges each and every paragraph numbered 1 through 80 inclusive as if more fully set forth at length herein.

82.That on or about October 10, 2012, plaintiff JALEN L. ROSE was taken into custody imprisoned and confined by defendant POLICE OFFICER NELSON PABON.

83.That on or about October 10, 2012, it was the intention of defendant POLICE OFFICER NELSO PABON to confine the plaintiff JALEN L. ROSE and JALEN L. ROSE was conscious of such confinement and as such confinement was not privileged.

84.That on or about October 10, 2012, the plaintiff was victim of tortious conduct perpetrated by the defendant POLICE OFFICER NELSON PABON, which tortious conduct consisted of negligence, false imprisonment, negligent misidentification, negligent hiring and retention and violation of the plaintiff's civil rights, including but not limited to 42 U.S.C. Section 1988.

85.At the aforesaid time and place, and at all times pertinent to this action, the defendant POLICE OFFICER NELSON PABON, was

acting within the scope of his employment duties for THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

86. At the aforesaid time and place, and at all times pertinent to this action, the defendant POLICE OFFICER NELSON PABON, committed the aforesaid tortious conduct that injured the plaintiff, were acting within the scope of their apparent authority as a Police Officer.

87. The tortious conduct that was committed by the defendant POLICE OFFICER NELSON PABON, which was egregious and oppressive and characterized by malicious or wantonness justifying the imposition of punitive damages therefore.

88. The imposition of punitive damages on the defendant, POLICE OFFICER NELSON PABON, for egregious tortious conduct of the defendants is justified on the grounds that the defendant THE CITY OF NEW YORK authorized and ratified the conduct or that the defendants were reckless or wanton in retaining and hiring the employees who committed the tort after the knowledge of the employees' proclivities to engage in such conduct.

89. The imposition of punitive damages on the defendant, POLICE OFFICER NELSON PABON, for egregious tortious conduct of the defendant is justified on the grounds that the defendant THE NEW YORK CITY POLICE DEPARTMENT authorized and ratified the conduct or that the defendants were reckless or wanton in retaining and hiring the employees who committed the tort after the knowledge of the employees' proclivities to engage in such conduct.

AS TO WANDA MCLLELLAN
FOR A FIRST CAUSE OF ACTION

90. That on October 13, 2012 when claimant was released from custody resulting from an arrest on October 10, 2012 at approximately 6:00 A.M. after the criminal proceeding terminated on December 11, 2012. At 555 West 151st Street, Apartment 45, City and State of New York, where claimant was arrested subsequently put in to a Police van and taken into custody and brought to the 30th Police Precinct located at 451 West 151st Street, New York, New York, subsequently taken to Central Booking located at 100 Centre Street, New York, New York, and subsequently taken to Riker's Island Prison Complex located at 18-18 Hazen Street, Borough of Bronx and State of New York, where claimant was held and released on October 13, 2012 and at 100 Centre Street, New York, New York where claimant's case was dismissed.

91. That this action was commenced within one year and ninety days after said cause of action occurred, that within ninety days after said cause of action occurred, the plaintiff duly presented and filed with THE CITY OF NEW YORK, a duly verified statement of plaintiff's claims against the defendant showing in detail the injuries, and asking payment and adjustment of plaintiff's said claims, and that notice of the intention to commence such an action as the present stating the time when and place where the injuries were incurred or sustained was similarly presented to and filed with THE CITY OF NEW YORK and although more than thirty (30) days have elapsed since such presentation and filing, THE CITY OF NEW YORK, have neglected and refused to pay said claim. That a hearing pursuant to General Municipal Law Section 50-h was held on February 25, 2013.
92. That this action was commenced within one year and ninety days after said cause of action occurred, that within ninety days after said cause of action occurred, the plaintiff duly presented and filed with THE NEW YORK CITY POLICE DEPARTMENT, a duly verified statement of plaintiff's claims against the defendants showing in detail the injuries, and asking payment and adjustment of plaintiff's said claims, and that notice of the intention to commence such an action as the present stating the time when and place where the injuries were incurred or sustained was similarly presented to and filed with THE NEW YORK CITY POLICE DEPARTMENT and although more than thirty (30) days have elapsed since such presentation and filing, THE NEW YORK CITY POLICE DEPARTMENT, have neglected and refused to pay said claim. That a hearing pursuant to General Municipal Law Section 50-h was held on February 25, 2013.
93. That defendant, THE CITY OF NEW YORK is and at all times hereinafter mentioned was a municipal corporation organized and existing under the laws of the State of New York.
94. That defendant, THE NEW YORK CITY POLICE DEPARTMENT is and at all times hereinafter mentioned was a municipal corporation organized and existing under the laws of the State of New York.
95. That at all times hereinafter mentioned defendant, THE NEW YORK CITY POLICE DEPARTMENT, its servants, agents and/or employees employed Police Officers and other personnel, to work as representatives of defendant THE CITY OF NEW YORK.
96. That on or about October 10, 2012, plaintiff, WANDA MCCLELLAN, was lawfully present at the aforesaid location.

97. That on or about October 10, 2012, plaintiff, WANDA MCCLELLAN, was taken into custody imprisoned and confined by defendant, THE CITY OF NEW YORK.
98. That on or about October 10, 2012, plaintiff, WANDA MCCLELLAN, was taken into custody imprisoned and confined by defendant, THE NEW YORK CITY POLICE DEPARTMENT.
99. That on or about October 10, 2012, plaintiff, WANDA MCCLELLAN, was taken into custody, imprisoned and confined by defendant, THE CITY OF NEW YORK, and it was the intention of defendant THE CITY OF NEW YORK to so confine the plaintiff and that plaintiff was conscious of such confinement and did not consent to such confinement and neither was such confinement privileged.
100. That on or about October 10, 2012, plaintiff, WANDA MCCLELLAN, was taken into custody, imprisoned and confined by defendant, THE NEW YORK CITY POLICE DEPARTMENT, and it was the intention of defendant THE NEW YORK CITY POLICE DEPARTMENT to so confine the plaintiff and that plaintiff was conscious of such confinement and did not consent to such confinement and neither was such confinement privileged.
101. That on or about October 10, 2012, plaintiff, WANDA MCCLELLAN, was taken into custody at the aforesaid location, handcuffed and thereafter forced to enter a cell in the 30th Police Precinct, by said officers, the plaintiff was detained and incarcerated with criminals and persons charged with crimes, to her shame and humiliation.
102. Plaintiff WANDA MCCLELLAN, was held in the custody of defendant THE CITY OF NEW YORK from October 10, 2012 to October 13, 2012.
103. Plaintiff WANDA MCCLELLAN, was held in the custody of defendant THE NEW YORK CITY POLICE DEPARTMENT from October 10, 2012 to October 13, 2012.
104. While plaintiff was held, defendant, THE CITY OF NEW YORK, failed to properly investigate the nature of the detainment and circumstances resulting from the improper search and seizure and false arrest, and as a result held plaintiff believing she violated applicable rules, laws and regulations.
105. While plaintiff was held, defendant, THE NEW YORK CITY POLICE DEPARTMENT, failed to properly investigate the nature of the detainment and circumstances resulting from the improper search and seizure and false arrest, and as a result held plaintiff believing she violated applicable rules, laws and regulations.

106. Plaintiff WANDA MCCLELLAN, remained imprisoned against her will, at all times conscious of such imprisonment until October 13, 2012, when she was released from prison.

107. Said imprisonment, detention and confinement was made and caused to be made by the defendants without any justification, probable cause or excuse therefore and without any warrant or other process of any court directing or authorizing the imprisonment, detention or confinement of the plaintiff.

108. That on or about October 10, 2012, up to and including October 13, 2012 the plaintiff was a victim of tortious conduct perpetrated by agents, servants, officers and or employees of the defendant, THE CITY OF NEW YORK, which tortious conduct consisted of negligence, false imprisonment, malicious prosecution, libel, slander, wrongful arrest, negligent and intentional infliction of emotional distress, negligent hiring and retention and violation of the plaintiff's civil rights.

109. That on or about October 10, 2012, up to and including October 13, 2012 the plaintiff was a victim of tortious conduct perpetrated by agents, servants, officers and or employees of the defendant, THE NEW YORK CITY POLICE DEPARTMENT, which tortious conduct consisted of negligence, false imprisonment, malicious prosecution, libel, slander, wrongful arrest, negligent and intentional infliction of emotional distress, negligent hiring and retention and violation of the plaintiff's civil rights.

110. As a result of the aforesaid tortious conduct, plaintiff sustained serious personal injury, inconvenience, mental anguish, humiliation, damages and losses, both physical and psychological.

111. At the aforesaid time and place, and at all times pertinent to this action, the individuals who committed the aforesaid tortious conduct that injured the plaintiff were agents, servants, officers and or employees of the defendant, THE CITY OF NEW YORK and acting within the scope of their employment duties for THE CITY OF NEW YORK.

112. At the aforesaid time and place, and at all times pertinent to this action, the individuals who committed the aforesaid tortious conduct that injured the plaintiff were agents, servants, officers and or employees of the defendant, THE NEW YORK CITY POLICE DEPARTMENT and acting within the scope of their employment duties for THE NEW YORK CITY POLICE DEPARTMENT.

113. At the aforesaid time and place, and at all times pertinent to this action, the individuals who committed the aforesaid tortious conduct that injured the plaintiff were acting within the scope of their apparent authority as Police Officers.

114. At the aforesaid time and place and at all times pertinent to this action, the aforesaid tortious conduct that injured the plaintiff is imputable to THE CITY OF NEW YORK under the doctrine of respondent superior.

115. At the aforesaid time and place and at all times pertinent to this action, the aforesaid tortious conduct that injured the plaintiff is imputable to THE NEW YORK CITY POLICE DEPARTMENT under the doctrine of respondent superior.

116. The tortious conduct that was committed by the defendant, THE CITY OF NEW YORK, was egregious and oppressive and characterized by malicious or wantonness justifying the imposition of punitive damages therefore.

117. The tortious conduct that was committed by the defendant, THE NEW YORK CITY POLICE DEPARTMENT, was egregious and oppressive and characterized by malicious or wantonness justifying the imposition of punitive damages therefore.

118. The imposition of punitive damages on the defendant, THE CITY OF NEW YORK, for the egregious tortious conduct of the defendant's employees is justified on the grounds that the defendant, THE NEW YORK CITY POLICE DEPARTMENT authorized and ratified the conduct and that the defendant were reckless or wanton in retaining and hiring the employees who committed the tort after knowledge of the employees' proclivities to engage in such conduct.

119. The imposition of punitive damages on the defendant, THE NEW YORK CITY POLICE DEPARTMENT, for the egregious tortious conduct of the defendant's employees is justified on the grounds that the defendant, THE NEW YORK CITY POLICE DEPARTMENT authorized and ratified the conduct and that the defendant were reckless or wanton in retaining and hiring the employees who committed the tort after knowledge of the employees' proclivities to engage in such conduct.

AS TO WANDA MCCLELLAN
FOR A SECOND CAUSE OF ACTION

120. The plaintiff repeats, reiterates and realleges each and every paragraph numbered 90 through 119 inclusive as if more fully set forth at length herein.
121. That the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, in the absence of probable cause for criminal proceedings against the plaintiff WANDA MCCLELLAN and with actual malice, commenced and continued with the criminal proceedings against the plaintiff, which proceedings were terminated in favor of the plaintiff.
122. That at the aforesaid time and place, and at the times pertinent hereto, the plaintiff was victim of tortious conduct perpetrated by agents, servants, officers and or employees of the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, which tortious conduct consisted of false and wrongful imprisonment, wrongful detainment in custody, malicious prosecution, negligent hiring and retention and violation of the plaintiff's civil rights.
123. That at the aforesaid time and place, and at the times pertinent hereto, the plaintiff was victim of negligence on the part of the agents, servants, officers and or employees of the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT which included lodging a baseless complaint against the plaintiff, false imprisonment, wrongful imprisonment, wrongful detainment in custody, negligent and intentional infliction of emotional distress, all without probable cause or reasonable basis, in failing to prevent or aid in preventing the false and unfounded nature of criminal allegations against the plaintiff, despite being aware of same and in otherwise carelessly and improperly exercising their authority and power.
124. As a direct and proximate cause of the negligence described above the plaintiff sustained serious personal injury, inconvenience, mental anguish, humiliation, damages and losses, both physical and psychological.
125. That at all times pertinent hereto, the individuals whose negligence caused the plaintiff's injuries as described herein were employed by the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT in the capacity of agents, servants, officers and or employees.
126. The defendant's employees were acting in the scope of their employment, under the defendants' control and in furtherance of the defendants' interest at the time of their negligence which caused the plaintiffs injuries.

AS TO WANDA MCCELLAN
FOR A THIRD CAUSE OF ACTION

127. The plaintiff repeats, reiterates and realleges each and every paragraph numbered 90 through 126 inclusive as if more fully set forth at length herein.
128. That on or before October 10, 2012, the defendant, THE CITY OF NEW YORK hired the agent(s), servant(s), officer(s), and or employees who engaged in the aforesaid tortious conduct.
129. That on or before October 10, 2012, the defendant, THE NEW YORK CITY POLICE DEPARTMENT hired the agent(s), servant(s), officer(s), and or employees who engaged in the aforesaid tortious conduct.
130. The aforesaid agent(s), servant(s), officer(s) and or employees continued to be employed by the defendant, THE CITY OF NEW YORK, through, including, and beyond October 10, 2012.
131. The aforesaid agent(s), servant(s), officer(s) and or employees continued to be employed by the defendant, THE NEW YORK CITY POLICE DEPARTMENT, through, including, and beyond October 10, 2012.
132. That on October 10, 2012, up to and including October 13, 2012, the aforesaid agent(s), servant(s), officer(s) and or employees were incompetent and unfit to perform the work required in their capacity of agent(s), servant(s), officer(s) and or employees for the defendant, THE CITY OF NEW YORK.
133. That on October 10, 2012, up to and including October 13, 2012, the aforesaid agent(s), servant(s), officer(s) and or employees were incompetent and unfit to perform the work required in their capacity of agent(s), servant(s), officer(s) and or employees for the defendant, THE NEW YORK CITY POLICE DEPARTMENT.
134. The defendant, THE CITY OF NEW YORK, knew or should have known that a person in the plaintiff's position would be subjected to an unreasonable risk of harm from the aforesaid individuals committing said tortious conduct.
135. The defendant, THE NEW YORK CITY POLICE DEPARTMENT, knew or should have known that a person in the plaintiff's position would be subjected to an unreasonable risk of harm from the aforesaid individuals committing said tortious conduct.

136.The defendant, THE CITY OF NEW YORK, when they hired the agent(s), servant(s), officer(s), and or employees who committed said tortious conduct breached the duty owed to the plaintiff to use reasonable care in hiring them in that they knew or should have known that they were incompetent or unfit for employment. Furthermore, defendant, THE CITY OF NEW YORK, failed to conduct reasonable investigation into the background and character of said agent(s), servant(s), officer(s) and employees.

137.The defendant, THE NEW YORK CITY POLICE DEPARTMENT, when they hired the agent(s), servant(s), officer(s), and or employees who committed said tortious conduct breached the duty owed to the plaintiff to use reasonable care in hiring them in that they knew or should have known that they were incompetent or unfit for employment. Furthermore, defendant, THE NEW YORK CITY POLICE DEPARTMENT, failed to conduct reasonable investigation into the background and character of said agent(s), servant(s), officer(s) and employees.

138.That on or about October 10, 2012, agent(s), servant(s), officer(s) and or employees, of the defendant, THE CITY OF NEW YORK, falsely arrested the plaintiff, wrongfully arrested the plaintiff, wrongfully detained in custody, maliciously prosecuted, wrongfully imprisoned and falsely imprisoned the plaintiff.

139.That on or about October 10, 2012, agent(s), servant(s), officer(s) and or employees, of the defendant, THE NEW YORK CITY POLICE DEPARTMENT, falsely arrested the plaintiff, wrongfully arrested the plaintiff, wrongfully detained in custody, maliciously prosecuted, wrongfully imprisoned and falsely imprisoned the plaintiff.

140.As a direct and proximate result of the defendants' breach of duty in hiring and retaining said agent(s), servant(s), officer(s) and or employees, the plaintiff sustained serious personal injuries both physical and psychological.

AS TO WANDA MCCLELLAN
FOR A FOURTH CAUSE OF ACTION

141.The plaintiff repeats, reiterates and realleges each and every paragraph numbered 90 through 141 inclusive as if more fully set forth at length herein.

142.The acts of the defendant, THE CITY OF NEW YORK, their agent(s), servant(s), officer(s) and or employees described herein were done willfully, maliciously, outrageously,

deliberately and purposely with the intention to inflict emotional distress upon the plaintiffs and to destroy plaintiffs' personal property and to destroy plaintiff's personal possessions and to destroy plaintiff's apartment, and they were all done in reckless disregard of the probability of causing the plaintiff emotional distress and these acts did in fact result in fear and extreme emotional distress.

143. The acts of the defendant, THE NEW YORK CITY POLICE DEPARTMENT, their agent(s), servant(s), officer(s) and or employees described herein were done willfully, maliciously, outrageously, deliberately and purposely with the intention to inflict emotional distress upon the plaintiffs and to destroy plaintiffs' personal property and to destroy plaintiff's personal possessions and to destroy plaintiff's apartment, and they were all done in reckless disregard of the probability of causing the plaintiff emotional distress and these acts did in fact result in fear and extreme emotional distress.

144. As a direct and proximate result of the acts mentioned above, plaintiff was caused to incur severe mental and emotional suffering, fright, anguish, shock, nervousness and anxiety. Plaintiff continues to be fearful, anxious and nervous for which he was required to seek and receive medical treatment.

AS TO WANDA MCCLELLAN
FOR A FIFTH CAUSE OF ACTION

145. The plaintiff repeats, reiterates and realleges each and every paragraph numbered 90 through 145 inclusive as if more fully set forth at length herein.

146. Plaintiff was imprisoned and detained without probable cause by the defendant, THE CITY OF NEW YORK, their agent(s), servant(s), officer(s) and or employees, who under the facts available did not have an objective, good faith belief that the plaintiff was guilty of the charges against him.

147. Plaintiff was imprisoned and detained without probable cause by the defendant, THE NEW YORK CITY POLICE DEPARTMENT, their agent(s), servant(s), officer(s) and or employees, who under the facts available did not have an objective, good faith belief that the plaintiff was guilty of the charges against him.

148. As a direct and proximate cause of the false imprisonment, wrongful imprisonment, unjustified false arrest, negligence and wrongful arrest, plaintiff has suffered damages both physical and psychological.

AS TO WANDA MCCLELLAN
FOR A SIXTH CAUSE OF ACTION

149.The plaintiff repeats, reiterates and realleges each and every paragraph numbered 90 through 148 inclusive as if more fully set forth at length herein.

150.The defendant, THE CITY OF NEW YORK, their agent(s), servant(s), officer(s) and or employees, falsely imprisoned the plaintiff; all with the intent to inflict unnecessary harm against the plaintiff.

151.The defendant, THE NEW YORK CITY POLICE DEPARTMENT, their agent(s), servant(s), officer(s) and or employees, falsely imprisoned the plaintiff; all with the intent to inflict unnecessary harm against the plaintiff.

152.Such acts caused both physical and psychological injuries to the plaintiff.

153.Plaintiff alleges that such acts were in violation of his civil rights under the Fourth Amendment of the United States Constitution to be free from unreasonable imprisonment and his right under the Fourteenth Amendment of the United States Constitution to due process of law.

154.Plaintiff's imprisonment was made under the authority of the agent(s), servant(s), officer(s) and or employees, of THE CITY OF NEW YORK.

155.Plaintiff's imprisonment was made under the authority of the agent(s), servant(s), officer(s) and or employees, of THE NEW YORK CITY POLICE DEPARTMENT.

156.Plaintiff further alleges that the violation of his constitutional rights were caused by the implementation of a custom, policy, or official act of the defendant, THE CITY OF NEW YORK, thereby making THE CITY OF NEW YORK, agent(s), servant(s), officer(s) and or employees liable pursuant to 42 U.S.C. Section 1983.

157.Plaintiff further alleges that the violation of his constitutional rights were caused by the implementation of a custom, policy, or official act of the defendant, THE NEW YORK CITY POLICE DEPARTMENT, thereby making THE NEW YORK CITY POLICE DEPARTMENT, agent(s), servant(s), officer(s) and or employees liable pursuant to 42 U.S.C. Section 1983.

AS TO WANDA MCCLELLAN
FOR A SEVENTH CAUSE OF ACTION

158.The plaintiff repeats, reiterates and realleges each and every paragraph numbered 90 through 157 inclusive as if more fully set forth at length herein.

159.Pursuant to 42 U.S.C. Section 1983 and 1988 the plaintiff seeks an award of costs and attorney fees incurred in bringing this action.

AS TO WANDA MCCLELLAN
FOR A EIGHTH CAUSE OF ACTION

160.The plaintiff repeats, reiterates and realleges each and every paragraph numbered 90 through 159 inclusive as if more fully set forth at length herein.

161.Pursuant to 42 U.S.C. Section 1983, the plaintiff demands an award of punitive damages against the individuals involved in the subject occurrence.

162.The plaintiff has been damaged and injured in his good name and reputation; caused to suffer great humiliation, pain and anguish of mind, and have been injured in her health.

AS TO WANDA MCCLELLAN
FOR A NINTH CAUSE OF ACTION

163.The plaintiff repeats, reiterates and realleges each and every paragraph numbered 90 through 162 inclusive as if more fully set forth at length herein.

164.That on or about October 10, 2012, plaintiff WANDA MCCLELLAN was taken into custody imprisoned and confined by defendant POLICE OFFICER NELSON PABON.

165.That on or about October 10, 2012, it was the intention of defendant POLICE OFFICER NELSO PABON to confine the plaintiff WANDA MCCLELLAN and WANDA MCCLELLAN was conscious of such confinement and as such confinement was not privileged.

166.That on or about October 10, 2012, the plaintiff was victim of tortious conduct perpetrated by the defendant POLICE OFFICER NELSON PABON, which tortious conduct consisted of negligence, false imprisonment, negligent misidentification, negligent

hiring and retention and violation of the plaintiff's civil rights, including but not limited to 42 U.S.C. Section 1988.

167. At the aforesaid time and place, and at all times pertinent to this action, the defendant POLICE OFFICER NELSON PABON, was acting within the scope of his employment duties for THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

168. At the aforesaid time and place, and at all times pertinent to this action, the defendant POLICE OFFICER NELSON PABON, committed the aforesaid tortious conduct that injured the plaintiff, were acting within the scope of their apparent authority as a Police Officer.

169. The tortious conduct that was committed by the defendant POLICE OFFICER NELSON PABON, which was egregious and oppressive and characterized by malicious or wantonness justifying the imposition of punitive damages therefore.

170. The imposition of punitive damages on the defendant, POLICE OFFICER NELSON PABON, for egregious tortious conduct of the defendant is justified on the grounds that the defendants THE CITY OF NEW YORK authorized and ratified the conduct or that the defendant were reckless or wanton in retaining and hiring the employees who committed the tort after the knowledge of the employees' proclivities to engage in such conduct.

171. The imposition of punitive damages on the defendant, POLICE OFFICER NELSON PABON, for egregious tortious conduct of the defendants is justified on the grounds that the defendant THE NEW YORK CITY POLICE DEPARTMENT authorized and ratified the conduct or that the defendant were reckless or wanton in retaining and hiring the employees who committed the tort after the knowledge of the employees' proclivities to engage in such conduct.

AS TO DWIGHT NICHOLS
FOR A FIRST CAUSE OF ACTION

172. That on October 15, 2012 when claimant was released from custody resulting from an arrest on October 10, 2012 at approximately 6:00 A.M. and continuing to date At 555 West 151st Street, Apartment 45, City and State of New York, where claimant was arrested subsequently put in to a Police van and taken into custody and brought to the 30th Police Precinct located at 451 West 151st Street, New York, New York, subsequently taken to Central Booking located at 100 Centre Street, New York, New York, and subsequently taken to Manhattan Detention Complex

"The Tombs" located at 125 White Street, New York, New York where plaintiff was held and released on October 15, 2013.

173. That this action was commenced within one year and ninety days after said cause of action occurred, that within ninety days after said cause of action occurred, the plaintiffs duly presented and filed with THE CITY OF NEW YORK, a duly verified statement of plaintiff's claims against the defendant showing in detail the injuries, and asking payment and adjustment of plaintiff's said claims, and that notice of the intention to commence such an action as the present stating the time when and place where the injuries were incurred or sustained was similarly presented to and filed with THE CITY OF NEW YORK and although more than thirty (30) days have elapsed since such presentation and filing, THE CITY OF NEW YORK, have neglected and refused to pay said claim.

174. That this action was commenced within one year and ninety days after said cause of action occurred, that within ninety days after said cause of action occurred, the plaintiff duly presented and filed with THE NEW YORK CITY POLICE DEPARTMENT, a duly verified statement of plaintiff's claims against the defendants showing in detail the injuries, and asking payment and adjustment of plaintiff's said claims, and that notice of the intention to commence such an action as the present stating the time when and place where the injuries were incurred or sustained was similarly presented to and filed with THE NEW YORK CITY POLICE DEPARTMENT and although more than thirty (30) days have elapsed since such presentation and filing, THE NEW YORK CITY POLICE DEPARTMENT, have neglected and refused to pay said claim.

175. That defendant, THE CITY OF NEW YORK is and at all times hereinafter mentioned was a municipal corporation organized and existing under the laws of the State of New York.

176. That defendant, THE NEW YORK CITY POLICE DEPARTMENT is and at all times hereinafter mentioned was a municipal corporation organized and existing under the laws of the State of New York.

177. That at all times hereinafter mentioned defendant, THE NEW YORK CITY POLICE DEPARTMENT, its servants, agents and/or employees employed Police Officers and other personnel, to work as representatives of defendant THE CITY OF NEW YORK.

178. That on or about October 10, 2012, plaintiff, DWIGHT NICHOLS, was lawfully present at the aforesaid location.

179. That on or about October 10, 2012, plaintiff, DWIGHT NICHOLS, was taken into custody imprisoned and confined by defendant, THE CITY OF NEW YORK.
180. That on or about October 10, 2012, plaintiff, DWIGHT NICHOLS, was taken into custody imprisoned and confined by defendant, THE NEW YORK CITY POLICE DEPARTMENT.
181. That on or about October 10, 2012, plaintiff, DWIGHT NICHOLS, was taken into custody, imprisoned and confined by defendant, THE CITY OF NEW YORK, and it was the intention of defendant THE CITY OF NEW YORK to so confine the plaintiff and that plaintiff was conscious of such confinement and did not consent to such confinement and neither was such confinement privileged.
182. That on or about October 10, 2012, plaintiff, DWIGHT NICHOLS, was taken into custody, imprisoned and confined by defendant, THE NEW YORK CITY POLICE DEPARTMENT, and it was the intention of defendant THE NEW YORK CITY POLICE DEPARTMENT to so confine the plaintiff and that plaintiff was conscious of such confinement and did not consent to such confinement and neither was such confinement privileged.
183. That on or about October 10, 2012, plaintiff, DWIGHT NICHOLS, was taken into custody at the aforesaid location, handcuffed and thereafter forced to enter a cell in the 30th Police Precinct, by said officers, the plaintiff was detained and incarcerated with criminals and persons charged with crimes, to her shame and humiliation.
184. Plaintiff DWIGHT NICHOLS, was held in the custody of defendant THE CITY OF NEW YORK from October 10, 2012 to October 15, 2012.
185. Plaintiff DWIGHT NICHOLS, was held in the custody of defendant THE NEW YORK CITY POLICE DEPARTMENT from October 10, 2012 to October 15, 2012.
186. While plaintiff was held, defendant, THE CITY OF NEW YORK, failed to properly investigate the nature of the detainment and circumstances resulting from the improper search and seizure and false arrest, and as a result held plaintiff believing he violated applicable rules, laws and regulations.
187. While plaintiff was held, defendant, THE NEW YORK CITY POLICE DEPARTMENT, failed to properly investigate the nature of the detainment and circumstances resulting from the improper search and seizure and false arrest, and as a result held plaintiff believing he violated applicable rules, laws and regulations.

188. Plaintiff DWIGHT NICHOLS, remained imprisoned against his will, at all times conscious of such imprisonment until October 15, 2012, when she was released from prison.

189. Said imprisonment, detention and confinement was made and caused to be made by the defendants without any justification, probable cause or excuse therefore and without any warrant or other process of any court directing or authorizing the imprisonment, detention or confinement of the plaintiff.

190. That on or about October 10, 2012, up to and including October 15, 2012 the plaintiff was a victim of tortious conduct perpetrated by agents, servants, officers and or employees of the defendant, THE CITY OF NEW YORK, which tortious conduct consisted of negligence, false imprisonment, malicious prosecution, libel, slander, wrongful arrest, negligent and intentional infliction of emotional distress, negligent hiring and retention and violation of the plaintiff's civil rights.

191. That on or about October 10, 2012, up to and including October 15, 2012 the plaintiff was a victim of tortious conduct perpetrated by agents, servants, officers and or employees of the defendant, THE NEW YORK CITY POLICE DEPARTMENT, which tortious conduct consisted of negligence, false imprisonment, malicious prosecution, libel, slander, wrongful arrest, negligent and intentional infliction of emotional distress, negligent hiring and retention and violation of the plaintiff's civil rights.

192. As a result of the aforesaid tortious conduct, plaintiff sustained serious personal injury, inconvenience, mental anguish, humiliation, damages and losses, both physical and psychological.

193. At the aforesaid time and place, and at all times pertinent to this action, the individuals who committed the aforesaid tortious conduct that injured the plaintiff were agents, servants, officers and or employees of the defendant, THE CITY OF NEW YORK and acting within the scope of their employment duties for THE CITY OF NEW YORK.

194. At the aforesaid time and place, and at all times pertinent to this action, the individuals who committed the aforesaid tortious conduct that injured the plaintiff were agents, servants, officers and or employees of the defendant, THE NEW YORK CITY POLICE DEPARTMENT and acting within the scope of their employment duties for THE NEW YORK CITY POLICE DEPARTMENT.

195. At the aforesaid time and place, and at all times pertinent to this action, the individuals who committed the aforesaid tortious conduct that injured the plaintiff were acting within the scope of their apparent authority as Police Officers.

196. At the aforesaid time and place and at all times pertinent to this action, the aforesaid tortious conduct that injured the plaintiff is imputable to THE CITY OF NEW YORK under the doctrine of respondent superior.

197. At the aforesaid time and place and at all times pertinent to this action, the aforesaid tortious conduct that injured the plaintiff is imputable to THE NEW YORK CITY POLICE DEPARTMENT under the doctrine of respondent superior.

198. The tortious conduct that was committed by the defendant, THE CITY OF NEW YORK, was egregious and oppressive and characterized by malicious or wantonness justifying the imposition of punitive damages therefore.

199. The tortious conduct that was committed by the defendant, THE NEW YORK CITY POLICE DEPARTMENT, was egregious and oppressive and characterized by malicious or wantonness justifying the imposition of punitive damages therefore.

200. The imposition of punitive damages on the defendant, THE CITY OF NEW YORK for the egregious tortious conduct of the defendant's employees is justified on the grounds that the defendant, THE CITY OF NEW YORK and ratified the conduct and that the defendant was reckless or wanton in retaining and hiring the employees who committed the tort after knowledge of the employees' proclivities to engage in such conduct.

201. The imposition of punitive damages on the defendant, THE NEW YORK CITY POLICE DEPARTMENT, for the egregious tortious conduct of the defendant's employees is justified on the grounds that the defendant, THE NEW YORK CITY POLICE DEPARTMENT authorized and ratified the conduct and that the defendant was reckless or wanton in retaining and hiring the employees who committed the tort after knowledge of the employees' proclivities to engage in such conduct.

AS TO DWIGHT NICHOLS
FOR A SECOND CAUSE OF ACTION

- 202.The plaintiff repeats, reiterates and realleges each and every paragraph numbered 172 through 201 inclusive as if more fully set forth at length herein.
- 203.That the defendant THE CITY OF NEW YORK, in the absence of probable cause for criminal proceedings against the plaintiff DWIGHT NICHOLS and with actual malice, commenced and continued with the criminal proceedings against the plaintiff, which proceedings were terminated in favor of the plaintiff.
- 204.That the defendant THE NEW YORK CITY POLICE DEPARTMENT, in the absence of probable cause for criminal proceedings against the plaintiff DWIGHT NICHOLS and with actual malice, commenced and continued with the criminal proceedings against the plaintiff, which proceedings were terminated in favor of the plaintiff.
- 205.That at the aforesaid time and place, and at the times pertinent hereto, the plaintiff was victim of tortious conduct perpetrated by agents, servants, officers and or employees of the defendant, THE CITY OF NEW YORK, which tortious conduct consisted of false and wrongful imprisonment, wrongful detainment in custody, malicious prosecution, negligent hiring and retention and violation of the plaintiff's civil rights.
- 206.That at the aforesaid time and place, and at the times pertinent hereto, the plaintiff was victim of tortious conduct perpetrated by agents, servants, officers and or employees of the defendant, THE NEW YORK CITY POLICE DEPARTMENT, which tortious conduct consisted of false and wrongful imprisonment, wrongful detainment in custody, malicious prosecution, negligent hiring and retention and violation of the plaintiff's civil rights.
- 207.That at the aforesaid time and place, and at the times pertinent hereto, the plaintiff was victim of negligence on the part of the agents, servants, officers and or employees of the defendants, THE CITY OF NEW YORK which included lodging a baseless complaint against the plaintiff, false imprisonment, wrongful imprisonment, wrongful detainment in custody, negligent and intentional infliction of emotional distress, all without probable cause or reasonable basis, in failing to prevent or aid in preventing the false and unfounded nature of criminal allegations against the plaintiff, despite being aware of same and in otherwise carelessly and improperly exercising their authority and power.
- 208.That at the aforesaid time and place, and at the times pertinent hereto, the plaintiff was victim of negligence on the

part of the agents, servants, officers and or employees of the defendants, THE NEW YORK CITY POLICE DEPARTMENT which included lodging a baseless complaint against the plaintiff, false imprisonment, wrongful imprisonment, wrongful detainment in custody, negligent and intentional infliction of emotional distress, all without probable cause or reasonable basis, in failing to prevent or aid in preventing the false and unfounded nature of criminal allegations against the plaintiff, despite being aware of same and in otherwise carelessly and improperly exercising their authority and power.

209.As a direct and proximate cause of the negligence described above the plaintiff sustained serious personal injury, inconvenience, mental anguish, humiliation, damages and losses, both physical and psychological.

210.That at all times pertinent hereto, the individuals whose negligence caused the plaintiff's injuries as described herein were employed by the defendant, THE CITY OF NEW YORK in the capacity of agents, servants, officers and or employees.

211.That at all times pertinent hereto, the individuals whose negligence caused the plaintiff's injuries as described herein were employed by the defendant, THE NEW YORK CITY POLICE DEPARTMENT in the capacity of agents, servants, officers and or employees.

212.The defendant's employees were acting in the scope of their employment, under the defendants' control and in furtherance of the defendants' interest at the time of their negligence which caused the plaintiffs injuries.

AS TO DWIGHT NICHOLS
FOR A THIRD CAUSE OF ACTION

213.The plaintiff repeats, reiterates and realleges each and every paragraph numbered 172 through 212 inclusive as if more fully set forth at length herein.

214.That on or before October 10, 2012, the defendant, THE CITY OF NEW YORK hired the agent(s), servant(s), officer(s), and or employees who engaged in the aforesaid tortious conduct.

215.That on or before October 10, 2012, the defendant, THE NEW YORK CITY POLICE DEPARTMENT hired the agent(s), servant(s), officer(s), and or employees who engaged in the aforesaid tortious conduct.

216.The aforesaid agent(s), servant(s), officer(s) and or employees continued to be employed by the defendant, THE CITY OF NEW YORK, through, including, and beyond October 10, 2012.

217.The aforesaid agent(s), servant(s), officer(s) and or employees continued to be employed by the defendant, THE NEW YORK CITY POLICE DEPARTMENT, through, including, and beyond October 10, 2012.

218.That on October 10, 2012, up to and including October 13, 2012, the aforesaid agent(s), servant(s), officer(s) and or employees were incompetent and unfit to perform the work required in their capacity of agent(s), servant(s), officer(s) and or employees for the defendant, THE CITY OF NEW YORK.

219.That on October 10, 2012, up to and including October 13, 2012, the aforesaid agent(s), servant(s), officer(s) and or employees were incompetent and unfit to perform the work required in their capacity of agent(s), servant(s), officer(s) and or employees for the defendant, THE NEW YORK CITY POLICE DEPARTMENT.

220.The defendant, THE CITY OF NEW YORK, knew or should have known that a person in the plaintiff's position would be subjected to an unreasonable risk of harm from the aforesaid individuals committing said tortious conduct.

221.The defendant, THE NEW YORK CITY POLICE DEPARTMENT, knew or should have known that a person in the plaintiff's position would be subjected to an unreasonable risk of harm from the aforesaid individuals committing said tortious conduct.

222.The defendant, THE CITY OF NEW YORK, when they hired the agent(s), servant(s), officer(s), and or employees who committed said tortious conduct breached the duty owed to the plaintiff to use reasonable care in hiring them in that they knew or should have known that they were incompetent or unfit for employment. Furthermore, defendant, THE CITY OF NEW YORK, failed to conduct reasonable investigation into the background and character of said agent(s), servant(s), officer(s) and employees.

223.The defendant, THE NEW YORK CITY POLICE DEPARTMENT, when they hired the agent(s), servant(s), officer(s), and or employees who committed said tortious conduct breached the duty owed to the plaintiff to use reasonable care in hiring them in that they knew or should have known that they were incompetent or unfit for employment. Furthermore, defendant, THE NEW YORK CITY POLICE DEPARTMENT, failed to conduct reasonable investigation into the

background and character of said agent(s), servant(s), officer(s) and employees.

224. That on or about October 10, 2012, agent(s), servant(s), officer(s) and or employees, of the defendant, THE CITY OF NEW YORK, falsely arrested the plaintiff, wrongfully arrested the plaintiff, wrongfully detained in custody, maliciously prosecuted, wrongfully imprisoned and falsely imprisoned the plaintiff.

225. That on or about October 10, 2012, agent(s), servant(s), officer(s) and or employees, of the defendant, THE NEW YORK CITY POLICE DEPARTMENT, falsely arrested the plaintiff, wrongfully arrested the plaintiff, wrongfully detained in custody, maliciously prosecuted, wrongfully imprisoned and falsely imprisoned the plaintiff.

226. As a direct and proximate result of the defendants' breach of duty in hiring and retaining said agent(s), servant(s), officer(s) and or employees, the plaintiff sustained serious personal injuries both physical and psychological.

AS TO DWIGHT NICHOLS
FOR A FOURTH CAUSE OF ACTION

227. The plaintiff repeats, reiterates and realleges each and every paragraph numbered 172 through 226 inclusive as if more fully set forth at length herein.

228. The acts of the defendant, THE CITY OF NEW YORK, their agent(s), servant(s), officer(s) and or employees described herein were done willfully, maliciously, outrageously, deliberately and purposely with the intention to inflict emotional distress upon the plaintiffs and to destroy plaintiffs' personal property and to destroy plaintiff's personal possessions and to destroy plaintiff's apartment, and they were all done in reckless disregard of the probability of causing the plaintiff emotional distress and these acts did in fact result in fear and extreme emotional distress.

229. The acts of the defendant, THE NEW YORK CITY POLICE DEPARTMENT, their agent(s), servant(s), officer(s) and or employees described herein were done willfully, maliciously, outrageously, deliberately and purposely with the intention to inflict emotional distress upon the plaintiffs and to destroy plaintiffs' personal property and to destroy plaintiff's personal possessions and to destroy plaintiff's apartment, and they were all done in reckless disregard of the probability of

causing the plaintiff emotional distress and these acts did in fact result in fear and extreme emotional distress.

230.As a direct and proximate result of the acts mentioned above, plaintiff was caused to incur severe mental and emotional suffering, fright, anguish, shock, nervousness and anxiety. Plaintiff continues to be fearful, anxious and nervous for which he was required to seek and receive medical treatment.

AS TO DWIGHT NICHOLS
FOR A FIFTH CAUSE OF ACTION

231.The plaintiff repeats, reiterates and realleges each and every paragraph numbered 172 through 230 inclusive as if more fully set forth at length herein.

232.Plaintiff was imprisoned and detained without probable cause by the defendant, THE CITY OF NEW YORK, their agent(s), servant(s), officer(s) and or employees, who under the facts available did not have an objective, good faith belief that the plaintiff was guilty of the charges against him.

233.Plaintiff was imprisoned and detained without probable cause by the defendant, THE NEW YORK CITY POLICE DEPARTMENT, their agent(s), servant(s), officer(s) and or employees, who under the facts available did not have an objective, good faith belief that the plaintiff was guilty of the charges against him.

234.As a direct and proximate cause of the false imprisonment, wrongful imprisonment, unjustified false arrest, negligence and wrongful arrest, plaintiff has suffered damages both physical and psychological.

AS TO DWIGHT NICHOLS
FOR A SIXTH CAUSE OF ACTION

235.The plaintiff repeats, reiterates and realleges each and every paragraph numbered 172 through 234 inclusive as if more fully set forth at length herein.

236.The defendant, THE CITY OF NEW YORK, their agent(s), servant(s), officer(s) and or employees, falsely imprisoned the plaintiff; all with the intent to inflict unnecessary harm against the plaintiff.

237.The defendant, THE NEW YORK CITY POLICE DEPARTMENT, their agent(s), servant(s), officer(s) and or employees, falsely

imprisoned the plaintiff; all with the intent to inflict unnecessary harm against the plaintiff.

238. Such acts caused both physical and psychological injuries to the plaintiff.

239. Plaintiff alleges that such acts were in violation of his civil rights under the Fourth Amendment of the United States Constitution to be free from unreasonable imprisonment and his right under the Fourteenth Amendment of the United States Constitution to due process of law.

240. Plaintiff's imprisonment was made under the authority of the agent(s), servant(s), officer(s) and or employees, of THE CITY OF NEW YORK.

241. Plaintiff's imprisonment was made under the authority of the agent(s), servant(s), officer(s) and or employees, of THE NEW YORK CITY POLICE DEPARTMENT.

242. Plaintiff further alleges that the violation of his constitutional rights were caused by the implementation of a custom, policy, or official act of the defendant, THE CITY OF NEW YORK, thereby making THE CITY OF NEW YORK, agent(s), servant(s), officer(s) and or employees liable pursuant to 42 U.S.C. Section 1983.

243. Plaintiff further alleges that the violation of his constitutional rights were caused by the implementation of a custom, policy, or official act of the defendant, THE NEW YORK CITY POLICE DEPARTMENT, thereby making THE NEW YORK CITY POLICE DEPARTMENT, agent(s), servant(s), officer(s) and or employees liable pursuant to 42 U.S.C. Section 1983.

AS TO DWIGHT NICHOLS
FOR A SEVENTH CAUSE OF ACTION

244. The plaintiff repeats, reiterates and realleges each and every paragraph numbered 172 through 244 inclusive as if more fully set forth at length herein.

245. Pursuant to 42 U.S.C. Section 1983 and 1988 the plaintiff seeks an award of costs and attorney fees incurred in bringing this action.

AS TO DWIGHT NICHOLS
FOR A EIGHTH CAUSE OF ACTION

246.The plaintiff repeats, reiterates and realleges each and every paragraph numbered 172 through 245 inclusive as if more fully set forth at length herein.

247.Pursuant to 42 U.S.C. Section 1983, the plaintiff demands an award of punitive damages against the individuals involved in the subject occurrence.

248.The plaintiff has been damaged and injured in his good name and reputation; caused to suffer great humiliation, pain and anguish of mind, and have been injured in his health.

AS TO DWIGHT NICHOLS
FOR A NINTH CAUSE OF ACTION

249.The plaintiff repeats, reiterates and realleges each and every paragraph numbered 172 through 249 inclusive as if more fully set forth at length herein.

250.That on or about October 10, 2012, plaintiff DWIGHT NICHOLS was taken into custody imprisoned and confined by defendant POLICE OFFICER NELSON PABON.

251.That on or about October 10, 2012, it was the intention of defendant POLICE OFFICER NELSO PABON to confine the plaintiff DWIGHT NICHOLS and DWIGHT NICHOLS was conscious of such confinement and as such confinement was not privileged.

252.That on or about October 10, 2012, the plaintiff was victim of tortious conduct perpetrated by the defendant POLICE OFFICER NELSON PABON, which tortious conduct consisted of negligence, false imprisonment, negligent misidentification, negligent hiring and retention and violation of the plaintiff's civil rights, including but not limited to 42 U.S.C. Section 1988.

253.At the aforesaid time and place, and at all times pertinent to this action, the defendant POLICE OFFICER NELSON PABON, was acting within the scope of his employment duties for THE CITY OF NEW YORK.

254.At the aforesaid time and place, and at all times pertinent to this action, the defendant POLICE OFFICER NELSON PABON, was acting within the scope of his employment duties for THE NEW YORK CITY POLICE DEPARTMENT.

255.At the aforesaid time and place, and at all times pertinent to this action, the defendant POLICE OFFICER NELSON PABON, committed the aforesaid tortious conduct that injured the

plaintiff, were acting within the scope of their apparent authority as a Police Officer.

256.The tortious conduct that was committed by the defendant POLICE OFFICER NELSON PABON, which was egregious and oppressive and characterized by malicious or wantonness justifying the imposition of punitive damages therefore.

257.The imposition of punitive damages on the defendant, POLICE OFFICER NELSON PABON, for egregious tortious conduct of the defendant is justified on the grounds that the defendant THE CITY OF NEW YORK authorized and ratified the conduct or that the defendant were reckless or wanton in retaining and hiring the employees who committed the tort after the knowledge of the employees' proclivities to engage in such conduct.

258.The imposition of punitive damages on the defendant, POLICE OFFICER NELSON PABON, for egregious tortious conduct of the defendants is justified on the grounds that the defendant THE NEW YORK CITY POLICE DEPARTMENT authorized and ratified the conduct or that the defendant were reckless or wanton in retaining and hiring the employees who committed the tort after the knowledge of the employees' proclivities to engage in such conduct.

WHEREFORE, plaintiffs demand judgment against defendants in an amount in excess of all lower courts which would otherwise have jurisdiction over this matter, together with the costs and disbursements of this action and attorney's fees.

DATED: NEW YORK, NEW YORK
October 9, 2013



CRAIG L. DAVIDOWITZ, P.C.,
Attorney for Plaintiff
Office and P.O. Address
450 Seventh Avenue, Suite 1508
New York, New York 10123
Tel: (212) 378-2051
Fax: (212) 378-2054

INDIVIDUAL'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York, affirms under the penalties of perjury:

That deponent is the attorney of record for the plaintiff(s) in the within action; that deponent has read the foregoing **SUMMONS AND COMPLAINT** and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes those to be true. Deponent further states that the reason this verification is made by deponent and not by the plaintiff(s) is that plaintiff(s) reside(s) in a county other than that in which deponent maintains his/her offices.

The grounds for deponent's belief as to all matters not stated upon his/her knowledge are investigations which he/she has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

Dated: New York, New York
October 9, 2013

Washica Nichols
WASHICA NICHOLS

Sworn to me on the
10 day of October, 2013

Katarzyna Belka
NOTARY PUBLIC

KATARZYNA BELKA
Notary Public, State of New York
No. 01-BE6255906
Qualified in Kings County
Commission Expires February 13, 2016

INDIVIDUAL'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York, affirms under the penalties of perjury:

That deponent is the attorney of record for the plaintiff(s) in the within action; that deponent has read the foregoing **SUMMONS AND COMPLAINT** and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes those to be true. Deponent further states that the reason this verification is made by deponent and not by the plaintiff(s) is that plaintiff(s) reside(s) in a county other than that in which deponent maintains his/her offices.

The grounds for deponent's belief as to all matters not stated upon his/her knowledge are investigations which he/she has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

Dated: New York, New York
October 9, 2013

Wanda McClellan
WANDA MCCLELLAN

Sworn to me on the
10 day of October, 2013

[Signature]
NOTARY PUBLIC

KATARZYNA BELKA
Notary Public, State of New York
No. 01-BE6255906
Qualified in Kings County
Commission Expires February 13, 2016

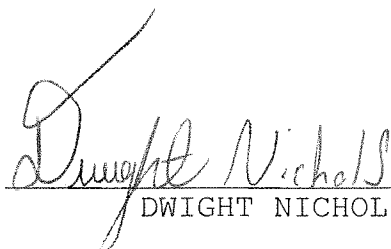
INDIVIDUAL'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York, affirms under the penalties of perjury:

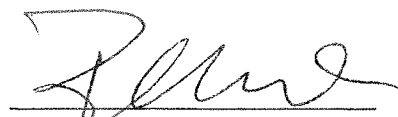
That deponent is the attorney of record for the plaintiff(s) in the within action; that deponent has read the foregoing **SUMMONS AND COMPLAINT** and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes those to be true. Deponent further states that the reason this verification is made by deponent and not by the plaintiff(s) is that plaintiff(s) reside(s) in a county other than that in which deponent maintains his/her offices.

The grounds for deponent's belief as to all matters not stated upon his/her knowledge are investigations which he/she has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

Dated: New York, New York
October 9, 2013


DWIGHT NICHOLS

Sworn to me on the
16 day of October, 2013


NOTARY PUBLIC

KATARZYNA BELKA
Notary Public, State of New York
No. 01-BE6255906
Qualified in Kings County
Commission Expires February 13, 2016

Index No.:

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

**JALEN L. ROSE, an infant under the age of 18 years by his
mother and legal guardian WASHICA NICHOLS ,WANDA
MCCLELLAN and DWIGHT NICHOLS,**

Plaintiffs,

-against-

**THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
NELSON PABON,**

Defendants.

SUMMONS AND VERIFIED COMPLAINT

**CRAIG L. DAVIDOWITZ, P.C.
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Fax: (212)378-2054**